

FILED

2013 SEP 20 AM 10:35

KING COUNTY
SUPERIOR COURT CLERK
SEATTLE, WA

FAM 01

SUPERIOR COURT OF WASHINGTON
COUNTY OF KING

In re the Custody of:

Timothy E. Bennett, II, Child,
Melvina Roberson,
aka Melvina Manning, Petitioner,
and

Zachariah J. Bennett and
Kelly J. Bennett,
nka Kelly J. Jovanovich,

Respondents.

NO: 08-3-03956-4 SEA

ORDER OF CHILD SUPPORT

(ORS)

FAX TO REGISTRY

Clerk's Action Required

I. JUDGMENT SUMMARY

1.1 JUDGMENT SUMMARY FOR ALL NON-MEDICAL EXPENSES.

Does not apply.

1.2 JUDGMENT SUMMARY FOR MEDICAL SUPPORT.

Does not apply.

II. BASIS

This order is entered under a petition for an order for modification of child support.

2.2 CHILD SUPPORT WORKSHEET.

The child support worksheet which has been approved by the court is attached to this order

ORDER OF CHILD SUPPORT (TMORS, ORS) - 1
WPF 4D 01.0500 (6/2010) - RCW 26.09.175; 26.26.132
IVD# 2073961
PT# 126151

DANIEL T. SATTERBERG
King County Prosecuting Attorney Family Support Division
E400 King County Courthouse
516 Third Avenue Seattle, WA 98104-2393
ph: (206) 296-9020
fax: (206) 296-9581

and is incorporated by reference or has been initialed and filed separately and is incorporated by reference.

2.3 OTHER:

III. FINDINGS AND ORDER

IT IS ORDERED that:

3.1 CHILDREN FOR WHOM SUPPORT IS REQUIRED:

<u>Name</u>	<u>Age</u>
Timothy E Bennett	6 years

3.2.a PERSON PAYING SUPPORT (OBLIGOR):

Name: **Zackariah Jeremiah Bennett**
Birth Date: **01/07/1981**
Service Address: [You may list an address that is not your residential address where you agree to accept legal documents.]

Address on file with the Washington State Support Registry

The obligor shall complete to the best of his or her knowledge a verified and signed Confidential Information Form providing his or her current residence and mailing address, telephone number, date of birth, social security number, driver's license number, and the name(s), address(es), and telephone number(s) of his or her employer. If the Obligor fails to complete the form, the attorney for the State of Washington may do so to the best of his or her knowledge.

THE OBLIGOR SHALL UPDATE THE INFORMATION REQUIRED BY PARAGRAPH 3.2 WITH THE COURT AND STATE CASE REGISTRY PROMPTLY AFTER ANY CHANGE IN THE INFORMATION. THE DUTY TO UPDATE THE INFORMATION CONTINUES AS LONG AS ANY MONTHLY SUPPORT REMAINS DUE OR ANY UNPAID SUPPORT DEBT REMAINS DUE UNDER THIS ORDER.

For purposes of this Order of Child Support, the support obligation is based upon the following income:

Actual Net Monthly Income: \$0.00 (obligor father is imprisoned).

OTHER: ninety (90) days following the obligor father's release from incarceration, his net income shall be imputed at \$1345.00. The amount of imputed income is based on the following in order of priority. The court has used the first option for which there is information: minimum wage in the jurisdiction where the parent lives at full-time earnings because the parent will have recently been released from incarceration.

The obligor may be able to seek reimbursement for day care or special child rearing expenses

1 not actually incurred. RCW 26.19.080

2
3 3.2.b PERSON PAYING SUPPORT (OBLIGOR):

4 Name: Kelly J. Bennett nka Kelly J. Jovanovich
5 Birth Date: 02/11/1986
6 Service Address: [You may list an address that is not your residential address where you
7 agree to accept legal documents.]

8 Address on file with the Washington State Support Registry

9 The obligor shall complete to the best of his or her knowledge a verified and signed
10 Confidential Information Form providing his or her current residence and mailing address,
11 telephone number, date of birth, social security number, driver's license number, and the
12 name(s), address(es), and telephone number(s) of his or her employer. If the Obligor fails
13 to complete the form, the attorney for the State of Washington may do so to the best of his
14 or her knowledge.

15 **THE OBLIGOR SHALL UPDATE THE INFORMATION REQUIRED BY**
16 **PARAGRAPH 3.2 WITH THE COURT AND STATE CASE REGISTRY**
17 **PROMPTLY AFTER ANY CHANGE IN THE INFORMATION. THE DUTY TO**
18 **UPDATE THE INFORMATION CONTINUES AS LONG AS ANY MONTHLY**
19 **SUPPORT REMAINS DUE OR ANY UNPAID SUPPORT DEBT REMAINS DUE**
20 **UNDER THIS ORDER.**

21 For purposes of this Order of Child Support, the support obligation is based upon the
22 following income:

23 Actual Monthly Net Income: \$1467.35

24 The obligor may be able to seek reimbursement for day care or special child rearing expenses
25 not actually incurred. RCW 26.19.080

26
27 3.3 PERSON RECEIVING SUPPORT (OBLIGEE):

28 Name: Melvina Roberson
29 Birth Date: 05/13/1959
30 Service Address: [You may list an address that is not your residential address where you
31 agree to accept legal documents.]

32 Address on file with the Washington State Support Registry

33 The obligee shall complete to the best of his or her knowledge a verified and signed
34 Confidential Information Form providing his or her current residence and mailing address,
35 telephone number, date of birth, social security number, driver's license number, and the
36 name(s), address(es), and telephone number(s) of his or her employer. If the Obligee fails
37 to complete the form, the attorney for the State of Washington may do so to the best of his
38 or her knowledge.

39 **THE OBLIGEE SHALL UPDATE THE INFORMATION REQUIRED BY**
40 **PARAGRAPH 3.3 WITH THE COURT AND STATE CASE REGISTRY**
41 **PROMPTLY AFTER ANY CHANGE IN THE INFORMATION. THE DUTY TO**

1 UPDATE THE INFORMATION CONTINUES AS LONG AS ANY MONTHLY
2 SUPPORT REMAINS DUE OR ANY UNPAID SUPPORT DEBT REMAINS DUE
3 UNDER THIS ORDER.

4 3.4 SERVICE OF PROCESS.

5 SERVICE OF PROCESS ON THE OBLIGOR AT THE ADDRESS REQUIRED BY
6 PARAGRAPH 3.2 OR ANY UPDATED ADDRESS, OR ON THE OBLIGEE AT THE
7 ADDRESS REQUIRED BY PARAGRAPH 3.3 OR ANY UPDATED ADDRESS, MAY
8 BE ALLOWED OR ACCEPTED AS ADEQUATE IN ANY PROCEEDING TO
9 ESTABLISH, ENFORCE OR MODIFY A CHILD SUPPORT ORDER BETWEEN
10 THE PARTIES BY DELIVERY OF WRITTEN NOTICE TO THE OBLIGOR OR
11 OBLIGEE AT THE LAST ADDRESS PROVIDED.

12 3.5 TRANSFER PAYMENT.

13 Kelly J. Bennett nka Kelly J. Jovanovich

14 The obligor mother shall pay the following amounts per month for the following
15 children:

<u>Name</u>	<u>Amount</u>
Timothy E Bennett	\$270.35
TOTAL MONTHLY TRANSFER AMOUNT	\$270.35

16 Zachariah J. Bennett

17 The obligor father shall pay the following amounts per month for the following
18 children:

<u>Name</u>	<u>Amount</u>
Timothy E Bennett	\$ 50.00
TOTAL MONTHLY TRANSFER AMOUNT	\$ 50.00

19 Ninety (90) days following the father's release from incarceration, the obligor father's child
20 support transfer payment shall increase to \$148.00 per month.

21 THE OBLIGOR PARENT'S PRIVILEGES TO OBTAIN OR MAINTAIN A
22 LICENSE, CERTIFICATE, REGISTRATION, PERMIT, APPROVAL, OR OTHER
23 SIMILAR DOCUMENT ISSUED BY A LICENSING ENTITY EVIDENCING
24 ADMISSION TO OR GRANTING AUTHORITY TO ENGAGE IN A PROFESSION,
25 OCCUPATION, BUSINESS, INDUSTRY, RECREATIONAL PURSUIT, OR THE
26 OPERATION OF A MOTOR VEHICLE, MAY BE DENIED, OR MAY BE
27 SUSPENDED IF THE OBLIGOR PARENT IS NOT IN COMPLIANCE WITH THIS
28 SUPPORT ORDER AS PROVIDED IN CHAPTER 74.20A REVISED CODE OF
WASHINGTON.

1
2 3.6 STANDARD CALCULATION.

3 Kelly J. Bennett nka Kelly J. Jovanovich

4 \$ 270.35 per month. (See Worksheet, line 17.)

5 Zachariah J. Bennett

6 \$ 50.00 per month. (See Worksheet, line 17)

7 \$ 148.00 per month. (See Worksheet, line 17)

8
9 3.7 REASONS FOR DEVIATION FROM STANDARD CALCULATION.

10 Kelly J. Bennett nka Kelly J. Jovanovich

11 The child support amount ordered in paragraph 3.5 does not deviate from the
12 standard calculation.

13 Zachariah J. Bennett

14 ☒ The child support amount ordered in paragraph 3.5 does not deviate from the
15 standard calculation.

16 ☐ The child support amount ordered in paragraph 3.5 deviates from the standard
17 calculation for the following reasons:

18 The obligor has established that it is unjust to apply the presumptive
19 minimum payment of \$50.00 per child. The factual basis for these reasons
is as follows: the father is imprisoned in the Washington Department of
Corrections, with a current projected release date of July 30, 2015.

20 3.8 REASONS WHY REQUEST FOR DEVIATION WAS DENIED.

21 ☐ Does not apply. A deviation for the obligor father was ordered.

22 ☒ The deviation sought by the obligor father was denied because a deviation below the
23 presumptive minimum child support obligation of \$50.00 per month would leave
24 insufficient funds in the custodial parent's household to meet the basic needs of the
child.

25 3.9 STARTING DATE AND DAY TO BE PAID:

26 Starting Date: June 5, 2013

27 Day(s) of the month support is due: 1st

28
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1 3.10 INCREMENTAL PAYMENTS.

2 Does not apply.

3 3.11 MAKING SUPPORT PAYMENTS.

4 Select *either* Enforcement and Collection or Payment Processing Only:

5 *Enforcement and collection:* The Division of Child Support (DCS) provides support
6 enforcement services for this case because: [X] This is a public assistance case [] this is a
7 case in which a parent has requested services from DCS [] a parent has signed the
8 application for services from DCS on the last page of this support order. (Check all that
9 apply.) . Support payments shall be made to:

10 Washington State Support Registry
11 P. O. Box 45868
12 Olympia, WA 98504-5868

13 Phone: 1-800-922-4306 or
14 1-800-442-5437

15 A party required to make payments to the Washington State Support Registry will not receive
16 credit for a payment made to any other party or entity. The obligor parent shall keep the
17 registry informed of whether he or she has access to health insurance coverage at reasonable
18 cost and, if so, provide the health insurance policy information.

19 3.12 WAGE WITHHOLDING

20 Withholding action may be taken against wages, earnings, assets, or benefits, and liens
21 enforced against real and personal property under the child support statutes of this or any
22 other state, without further notice to the obligor parent at any time after entry of this order
23 unless an alternative provision is made below:

24 [If the court orders immediate wage withholding in a case where DCS does not provide
25 support enforcement services, a mandatory wage assignment under Chap. 26.18 RCW must
26 be entered and support payments must be made to the Support Registry.]

27 3.13 TERMINATION OF SUPPORT:

28 Support shall be paid:

until the child reaches the age of 18 or as long as the child remains enrolled in high school,
whichever occurs last, but not beyond the 19th birthday of the child, except as otherwise
provided below in Paragraph 3.14.

3.14 POST SECONDARY EDUCATIONAL SUPPORT:

The right to request post secondary support is reserved, provided that the right is exercised

1 before support terminates as set forth in paragraph 3.13.

2
3 3.15 PAYMENT FOR EXPENSES NOT INCLUDED IN THE TRANSFER PAYMENT.

4 The mother shall pay 100% and the father 00% (each proportional share of income from the
5 Child Support Schedule Worksheet, line 6) of the following expenses incurred on behalf of
6 the children listed in Paragraph 3.1:

7 Work or school-related day care.

8 Ninety (90) days following the obligor father's release from incarceration the obligor mother
9 shall pay 52% and the father 48% (each proportional share of income from the Child Support
10 Schedule Worksheet, line 6) of work or school-related day care.

11 Payments shall be made to: the parent receiving the transfer payment.

12
13 3.16 PERIODIC ADJUSTMENT.

14 Pursuant to statute RCW 26.09.170.

15
16 3.17 INCOME TAX EXEMPTIONS:

17 ☒ The provisions regarding the allocation of the tax exemption for the child contained
18 in the Order of Child Support entered on 12/05/2008 shall remain in full force and
19 effect.

20 ☐ Tax exemptions for the child shall be allocated as follows:

21
22 3.18 MEDICAL SUPPORT - Health Insurance

23 Each parent shall provide health insurance coverage for the children listed in paragraph 3.1,
24 as follows:

25 3.18.1 HEALTH INSURANCE (either check box A(1), or check box A(2) and complete
26 sections B and C. Section D applies in all cases.)

27 A. Evidence

28 (1) ☒ There is insufficient evidence for the court to determine which parent must
provide coverage and which parent must contribute a sum certain. Therefore, the
court is not specifying how insurance coverage shall be provided. The petitioner's
and respondents' medical support obligations may be enforced by the Division of
Child Support or the other parent under RCW 26.18.170 as described in paragraph
3.18.2, below.

(2) Does not apply because A(1) is checked above.

1 B. Does not apply because A(1) is checked above.

2 C. Does not apply because A(1) is checked above.

3 D. Both parents' obligation:

4
5 If the children are receiving state financed medical coverage, the Division of Child
6 Support may enforce the responsible parent's monthly premium.

7 The parent(s) shall maintain health insurance coverage, if available for the children
8 listed in paragraph 3.1, until further order of the court or until health insurance is no
9 longer available through the parents' employer or union and no conversion privileges
10 exist to continue coverage following termination of employment.

11 A parent who is required under this order to provide health insurance coverage is
12 liable for any covered health care costs for which that parent receives direct payment
13 from an insurer.

14 A parent who is required under this order to provide health insurance coverage shall
15 provide proof that such coverage is available or not available within 20 days of the
16 entry of this order to the physical custodian or the Washington State Support Registry
17 if the parent has been notified or ordered to make payments to the Washington State
18 Support Registry.

19 If proof that health insurance coverage is available or not available is not provide
20 within 20 days, the parent seeking enforcement or the Department of Social and
21 Health Services may seek direct enforcement of the coverage through the other
22 parent's employer or union without further notice to the other parent as provided
23 under Chapter 26.18 RCW.

24 3.18.2 CHANGE OF CIRCUMSTANCES AND ENFORCEMENT

25 A parent required to provide health insurance coverage must notify both the Division of
26 Child Support and the other parent when coverage terminates.

27 If the parents' circumstances change, or if the court has not specified how medical support
28 shall be provided, the parents' medical support obligations will be enforced as provided in
RCW 26.18.170. If a parent does not provide proof of accessible coverage for the children
through private insurance, a parent may be required to satisfy his or her medical support
obligation by doing one of the following, listed in order of priority:

1. Providing or maintaining health insurance coverage through the parent's employer or union at a cost not to exceed 25% of that parent's basic support obligation;
2. Contributing the parent's proportionate share of a monthly premium being paid by the other parent for health insurance coverage for the children listed in paragraph 3.1 of this order, not to exceed 25% of the obligated parent's basic support obligation; or
3. Contributing the parent's proportionate share of a monthly premium paid by the state if the child receives state-financed medical coverage through DSHS under RCW 74.09 for which there is an assignment.

A parent seeking to enforce the obligation to provide health insurance coverage may apply for support enforcement services from the Division of Child Support; file a motion for contempt (use form WPF DRPCU 05.0100, Motion/Declaration for an Order to Show Cause re Contempt); or file a petition.

3.19 UNINSURED MEDICAL EXPENSES

Both parents have an obligation to pay their share of uninsured medical expenses. Zackariah Jeremiah Bennett shall pay 00% of uninsured medical expenses (unless stated otherwise, Zackariah Jeremiah Bennett's proportional share of income from the Worksheet, line 6) and Kelly J. Bennett nka Kelly J. Jovanovich shall pay 100% of uninsured medical expenses (unless stated otherwise, Kelly J. Jovanovich's proportional share of income from the Worksheet, line 6).

Ninety (90) days following the obligor father's release from incarceration, Zackariah Jeremiah Bennett shall pay 48% of uninsured medical expenses (unless stated otherwise, Zackariah Jeremiah Bennett's proportional share of income from the Worksheet, line 6) and Kelly J. Bennett nka Kelly J. Jovanovich shall pay 52% of uninsured medical expenses (unless stated otherwise, Kelly Jovanovich's proportional share of income from the Worksheet, line 6).

3.20 BACK CHILD SUPPORT

Back child support that may be owed is not affected by this order.

3.21 PAST DUE UNPAID MEDICAL SUPPORT

Back interest that may be owed is not affected by this order.

3.22 OTHER:

The parties' total monthly child support obligations, including the transfer payment and percentage share of expenses listed in Paragraphs 3.15 and 3.19 of this order, are capped and shall not exceed 45% of their respective net incomes pursuant to RCW 26.19.065.

1 DATED: 9/20/13

Dan Williams
JUDGE/COURT COMMISSIONER

2 Presented by:

DAN WILLIAMS Pro Tem

3 *[Signature]*
4 Mark Saltvig
5 Deputy Prosecuting Attorney
6 WSBA Number: 19052

7 Approved for entry:
8 Notice of presentation waived:

9 *Imprisoned (but filed a response)*
10 Zackariah Jeremiah Bennett

11
12 *See attached*
13 Kelly J. Jovanovich

14
15 *See attached*
16 Cabel M. Oken-Berg/Raegen N. Rasnic
17 Attorney for Kelly J. Jovanovich
18 WSBA #

19 *See attached*
20 Melvina Roberson

21 [] I apply for full support enforcement services from the Department of Social and Health
22 Services, Division of Child Support (DCS). (note: If you never received TANF, tribal
23 TANF, or AFDC, an annual \$25 fee applies if over \$500 is disbursed on a case, unless the
24 fee is waived by DCS.)

25
26 Signature of Party
27
28

1 DATED: _____

JUDGE/COURT COMMISSIONER _____

2 Presented by:

3
4 Mark Salvig
5 Deputy Prosecuting Attorney
6 WSBA Number: 19052

7 Approved for entry:
8 Notice of presentation waived:

9
10 Zackariah Jeremiah Bennett

11
12 *Kelly Jovanovich*
13 Kelly J. Jovanovich

14
15 *Cabel M. Oken-Berg*
16 Cabel M. Oken-Berg/Raegen N. Rasmic
17 Attorney for Kelly J. Jovanovich
WSBA # 12382

18
19
20 Melvina Roberson

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22 Services, Division of Child Support (DCS). (note: If you never received TANF, tribal
23 TANF, or AFDC, an annual \$25 fee applies if over \$500 is disbursed on a case, unless the
24 fee is waived by DCS.)

25
26 Signature of Party _____
27
28

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King County Prosecuting Attorney Family Support Division
8400 King County Courthouse
510 Third Avenue South, WA 98104-2200
ph: (206) 296-4000
fax: (206) 296-4281

1 DATED: 10/9/2013

JUDGE/COURT COMMISSIONER

2 Presented by:

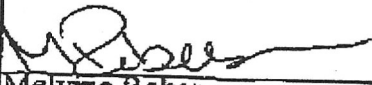
3
4 Mark Saltvig
5 Deputy Prosecuting Attorney
6 WSBA Number: 19052

7 Approved for entry:
8 Notice of presentation waived:

9
10 Zackariah Jeremiah Bennett

11
12
13 Kelly J. Jovanovich

14
15
16 Cabel M. Oken-Berg/Raegen N. Rasnic
17 Attorney for Kelly J. Jovanovich
18 WSBA #

19
20 
Melvina Roberson

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23 TANF, or AFDC, an annual \$25 fee applies if over \$500 is disbursed on a case, unless the
24 fee is waived by DCS.)

25
26 
Signature of Party

27
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E400 King County Courthouse
516 Third Avenue Seattle, WA 98104-2993
ph (206) 296-9020
fax (206) 296-5551